

Master Services Agreement

DRAFT FOR REVIEW BY COUNSEL — NOT LEGAL ADVICE. Drafted by the principal with AI assistance.

Bracketed items [LIKE THIS] need a decision or confirmation. Sections marked ■ are the ones most likely to matter in a dispute; please read those first.

Between: [COMPANY LEGAL NAME], a Manitoba corporation ("**Provider**") **And:** the client named in the Statement of Work ("**Client**") **Effective:** the date of the first executed Statement of Work.

1. Definitions

"**Services**" — the work described in a Statement of Work. "**SOW**" — a Statement of Work executed under this Agreement, in the form attached. "**Deliverables**" — work product Provider delivers to Client under an SOW.

"**Answer Engines**" — third-party AI answer and search systems (for example ChatGPT, Perplexity, Google AI Overviews, Claude). "**Measurement Data**" — data Provider generates by querying Answer Engines, including prompts, responses, sources, and derived scores. "**Confidential Information**" — non-public information disclosed by one party to the other and marked, or reasonably understood, as confidential.

2. Services

2.1 Provider will perform the Services described in each SOW. Each SOW forms part of this Agreement.

2.2 Where an SOW conflicts with this Agreement, the SOW governs **only** for the matters it expressly addresses, and only where it says it is overriding this Agreement.

2.3 Provider may engage subcontractors but remains responsible for their work.

3. ■ Nature of the Services — activities, not outcomes

3.1 **Provider does not control Answer Engines.** Answer Engines are operated by third parties who may change their models, ranking, citation behaviour, indexing, or terms at any time, without notice, and without regard to Client's interests.

3.2 **Provider therefore makes no representation, warranty, or guarantee** as to: any level of mention, citation, ranking, share of voice, visibility, traffic, leads, revenue, or any other outcome; the time within which any change may occur; or the persistence of any result achieved.

3.3 Provider's obligation is to perform the **activities** specified in the SOW — the defined volume of research, content, measurement, outreach, and reporting — to a professional standard. Performance is measured against those activities.

3.4 Any figures in proposals, forecasts, or reports are estimates and illustrations, not commitments.

3.5 **Measurement is a sample, not a census.** Answer Engines are non-deterministic; identical queries produce different responses over time. Reported figures describe a sampled prompt set at a point in time.

[COUNSEL] §3 is the single most important clause. Please confirm it is drafted tightly enough to foreclose an outcome-guarantee claim, including claims founded on pre-contract marketing statements.

4. ■ AI-assisted delivery

4.1 Client acknowledges that Provider uses artificial intelligence systems extensively in producing the Deliverables, including research, drafting, analysis, and code, under human direction and review.

4.2 Provider reviews Deliverables before delivery but does not warrant that AI-generated content is free of error. Client is responsible for final review and approval before publishing any Deliverable.

4.3 Provider will not represent AI-generated content as human-authored where a third party requires disclosure of authorship.

5. ■ Compliance and ethical limits

5.1 Provider performs the Services in accordance with its Compliance & Ethics Policy, as amended from time to time, which is incorporated by reference. The current version is provided to Client on request.

5.2 **Provider will not, and will not assist Client to:** create, buy, sell, or broker consumer reviews or testimonials, including AI-generated ones; compensate or incentivise any person to express a particular sentiment; post to any platform while impersonating Client or using unattributed accounts; operate or supply any website presenting itself as an independent review or comparison source while controlled by Provider or Client; suppress or conceal negative reviews; or fabricate research findings, statistics, or survey results.

5.3 These limits apply regardless of Client instruction. **A Client instruction to do any of the above is a material breach**, and Provider may suspend or terminate immediately under §7.3.

5.4 Client is responsible for the accuracy of factual claims about its own business that it supplies or approves, and for compliance with advertising rules specific to its industry.

6. Fees and payment

6.1 Fees are stated in the SOW in **US dollars** and are payable in US dollars.

6.2 Recurring fees are invoiced monthly in advance; one-time fees are invoiced on execution. Payment is due [NET 15 / ON RECEIPT] by the method Provider specifies.

6.3 Overdue amounts accrue interest at [1.5%] per month or the maximum permitted by law, whichever is lower. Provider may suspend Services on [10] days' written notice of non-payment.

6.4 Fees exclude taxes. Provider is a Canadian supplier; services supplied to a non-resident, non-GST/HST-registered Client are expected to be zero-rated. Provider will supply a **Form W-8BEN-E** on request. Client will not withhold from payments; Provider performs the Services outside the United States, and the amounts are not US-source income.

6.5 Provider may increase recurring fees on [60] days' written notice, effective at the start of a renewal month. Client may terminate under §7.2 if it does not accept the increase.

7. Term and termination

7.1 Each SOW has an initial term of **three (3) months** from the effective date, then continues month to month.

7.2 After the initial term, either party may terminate an SOW on **thirty (30) days'** written notice, effective at the end of a billing month.

7.3 Either party may terminate immediately on written notice if the other materially breaches and fails to cure within [15] days of notice, or immediately and without cure for a breach of §5.3.

7.4 On termination: Client pays for Services performed and irrevocably committed through the effective date; Provider delivers Deliverables for which payment has been received; each party returns or destroys the other's Confidential Information on request.

7.5 Fees paid for a period already commenced are **not refundable**, save where Provider terminates without cause.

7.6 §§3, 5, 8, 9, 10, 11, 12, 13 and 16 survive termination.

8. ■ Intellectual property

8.1 **Deliverables.** On receipt of full payment for the relevant SOW, Provider assigns to Client all right, title, and interest in the Deliverables, and waives moral rights in them to the extent permitted by law. Before payment, Client has no licence to use them.

8.2 **Provider Materials.** Provider retains all right, title, and interest in everything it uses to produce the Deliverables and which is not itself a Deliverable, including its scanner software, prompt libraries, measurement methodology, templates, processes, and know-how ("**Provider Materials**"). Where a Deliverable embeds Provider Materials, Provider grants Client a perpetual, worldwide, non-exclusive, royalty-free licence to use them as part of that Deliverable.

8.3 **Client Materials.** Client retains ownership of everything it supplies and grants Provider a licence to use it for the purpose of performing the Services.

8.4 Provider may describe the engagement and use Client's name and logo as a reference **only with Client's prior written consent**, which may be withdrawn on [30] days' notice.

9. ■ Measurement Data and published research

9.1 Provider owns the Measurement Data it generates.

9.2 Provider may use Measurement Data in **aggregated and anonymised** form for benchmarking, product improvement, and published research, including its periodic industry index.

9.3 Provider will **not** identify Client, Client's brands, or Client's individual results in any publication without Client's prior written consent. Aggregations will be constructed so that Client's individual figures cannot reasonably be derived from them.

9.4 §9.2 survives termination in respect of Measurement Data generated during the term.

[COUNSEL] §9 underpins a core business asset. Please confirm the anonymisation standard in §9.3 is adequate and that the survival in §9.4 is enforceable.

10. Confidentiality

10.1 Each party will protect the other's Confidential Information with at least reasonable care and use it only to perform or receive the Services.

10.2 The obligation does not apply to information that is or becomes public without breach, was known before disclosure, is independently developed, or is lawfully received from a third party.

10.3 A party may disclose Confidential Information where legally compelled, giving the other prompt notice where lawful.

10.4 Obligations continue for [3] years after termination, and indefinitely for trade secrets.

11. Warranties and disclaimer

11.1 Each party warrants it has authority to enter this Agreement.

11.2 Provider warrants it will perform the Services in a professional and workmanlike manner, consistent with industry standards.

11.3 **Except as expressly stated, the Services and Deliverables are provided "as is". Provider disclaims all other warranties, express, implied, or statutory, including merchantability, fitness for a particular purpose, non-infringement, and any warranty as to results.** §3 applies in full.

12. ■ Limitation of liability

12.1 Neither party is liable for indirect, incidental, special, consequential, exemplary, or punitive damages, or for lost profits, revenue, goodwill, or data, however caused.

12.2 Each party's total aggregate liability arising out of this Agreement is limited to the **fees paid by Client to Provider in the three (3) months preceding the event** giving rise to the claim.

12.3 §§12.1 and 12.2 do not limit liability for a party's fraud, wilful misconduct, breach of confidentiality, or amounts owed under §6, or any liability that cannot be limited at law.

13. Indemnification

13.1 Client indemnifies Provider against third-party claims arising from Client Materials, from factual claims about Client's business that Client supplied or approved, or from Client's use of Deliverables in a manner not contemplated by the SOW.

13.2 Provider indemnifies Client against third-party claims that a Deliverable, as delivered and excluding Client Materials, infringes that party's intellectual property rights.

13.3 The indemnified party will give prompt notice, allow the indemnifier to control the defence, and cooperate reasonably.

14. Independent contractor

Provider is an independent contractor. Nothing creates a partnership, joint venture, agency, or employment relationship. Neither party may bind the other.

15. Non-solicitation

During the term and for [12] months after, neither party will knowingly solicit for employment any individual who performed or received the Services on the other's behalf. General advertising not targeted at such individuals is permitted.

16. Governing law and disputes

16.1 This Agreement is governed by the laws of the **Province of Manitoba** and the federal laws of Canada applicable there, without regard to conflict-of-laws rules. The UN Convention on Contracts for the International Sale of Goods does not apply.

16.2 The parties submit to the exclusive jurisdiction of the courts of Manitoba.

16.3 The parties will attempt in good faith to resolve any dispute by negotiation for [30] days before commencing proceedings.

[COUNSEL] US clients frequently push back on Manitoba jurisdiction. Please advise on a fallback — neutral-venue arbitration, or accepting the defendant's forum — and on enforceability against a US-domiciled client.

17. General

17.1 **Notices** in writing, to the email addresses in the SOW; deemed received on the next business day. 17.2 **Assignment** — neither party may assign without the other's consent, not to be unreasonably withheld, except to a successor of substantially all its business. 17.3 **Force majeure** — neither party is liable for delay caused by events beyond its reasonable control, including failure or material change of any Answer Engine or third-party API. 17.4 **Entire agreement** — this Agreement and the SOWs supersede all prior discussions, including any pre-contract statements about likely results. 17.5 **Amendment** — only in writing signed by both parties. 17.6 **Severability** — an unenforceable provision is modified to the minimum extent necessary, and the rest continues. 17.7 **Waiver** — no waiver unless in writing; no single waiver is a continuing waiver. 17.8 **Counterparts** and electronic signatures are valid.

Provider: [COMPANY LEGAL NAME] — signature, name, title, date **Client:** [CLIENT LEGAL NAME] — signature, name, title, date